

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2023CUFR013600: SEPIDEH KARANDISH vs DCH OXNARD 1521 IMPORTS INC, et al.

**08/17/2026 in Department 21
Motion for Prejudgment Interest**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion for Prejudgment Interest (*Opposed*)

Tentative Ruling: Plaintiff Sepideh Karandish’s Motion for Prejudgment Interest is GRANTED IN PART and DENIED IN PART.

Defendants’ Request for Judicial Notice of Exhibits A through C is GRANTED on a limited basis. The Court takes judicial notice of the existence, contents, dates, and procedural effect of the court records in *Florida v. DCH Torrance Imports, Inc.*, but not of the truth of disputed factual findings or the correctness of that court’s legal reasoning. The *Florida* rulings are not binding or precedential.

Plaintiff’s Evidentiary Objections Nos. 1 through 4 are OVERRULED, subject to the foregoing limitations concerning the *Florida* court records.

As to the merits, Civil Code § 3287(a) mandates prejudgment interest where damages are certain or capable of being made certain by calculation and the right to recover vested on a particular day. In *Leaf v. Phil Rauch, Inc.* (1975) 47 Cal.App.3d 371, the Court of Appeal held in an automobile rescission action that amounts paid under the contract were sufficiently certain for purposes of § 3287(a), that the right to repayment became fixed upon rescission, and that interest accrued from the date of rescission on amounts previously paid and from the respective payment dates for payments made thereafter. Civil Code § 1692 likewise permits restitution and consequential damages in connection with rescission.

Plaintiff’s complaint sought rescission and was served on September 13, 2023. Civil Code § 1691 provides that service of a pleading seeking rescission constitutes the required notice and

offer of restoration. The Court therefore finds September 13, 2023 to be the appropriate accrual date for amounts previously paid, with interest on subsequent payments accruing from their respective payment dates.

Defendants' reliance on *Sharabianlou v. Karp* (2010) 181 Cal.App.4th 1133 and *Runyan v. Pacific Air Industries, Inc.* (1970) 2 Cal.3d 304 does not establish that prejudgment interest is unavailable following rescission. Nor does the nonprecedential *Florida* trial-court ruling overcome the published authority in *Leaf*.

Accordingly, Plaintiff's motion is GRANTED under Civil Code § 3287(a).

Plaintiff's alternative request under Civil Code § 3287(b) is DENIED. Although the settlement expressly preserved Plaintiff's right to seek prejudgment interest, it did not establish that the statutory requirements of Civil Code § 3287(b) were satisfied. The action settled without adjudication of a contract cause of action, and Plaintiff's proposed \$20,445.04 calculation additionally applies interest to the entire amount financed even though Plaintiff did not herself pay that entire principal at the outset.

Plaintiff has also failed to establish entitlement to the requested 10% interest rate under Civil Code § 3289(b). Civil Code § 3289(b) applies to an obligation following breach of contract. Plaintiff's recovery under Civil Code § 3287(a), however, is based upon rescission and restitution rather than an adjudicated breach, and the parties' settlement contains no admission or determination of breach. The availability of prejudgment interest under Civil Code § 3287 does not itself trigger the 10% rate under Civil Code § 3289(b). In the absence of another applicable statutory rate, the constitutional rate of 7% applies. (Cal. Const., art. XV, § 1; *Naranjo v. Spectrum Security Services, Inc.* (2022) 13 Cal.5th 93; *Carmel Development Co., Inc. v. Anderson* (2020) 48 Cal.App.5th 492, 525–527; *Pomona Valley Hospital Medical Center v. Kaiser Foundation Health Plan, Inc.* (2026) 119 Cal.App.5th 43.)

Applying the 7% rate to Plaintiff's § 3287(a) methodology, the Court awards Plaintiff \$8,291.66 in prejudgment interest.

Plaintiff shall give notice.